

23STCV21437 23STCV21437

County: los-angeles

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Case Number: 23STCV21437 Hearing Date: July 29, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

SOOK HEE LEE,

Plaintiff,

vs.

RODRIGO PEREZ, et al.,

Defendants.

Case No.:

23STCV21437

Hearing Date:

July

29, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF'S
REQUEST FOR DEFAULT JUDGMENT

Background

Plaintiff Sook Hee Lee ("Plaintiff") requests entry of default judgment against Defendants Rodrigo Perez, Sandra Ospina, and Fabio Gomez (collectively, "Defendants"). Plaintiff seeks judgment in the amount of \$41,708.49, comprising \$32,337.00 in damages, \$8,008.99 in interest, \$862.50 in costs, and \$500.00 in attorney fees.

At

the June 10, 2026 hearing, the Court denied Plaintiff's request for default judgment without prejudice because the damages sought were greater than the amount stated in the complaint. The Court continued the hearing and stated that Plaintiff "requested time to brief the issue of whether alleging continuing damages alleviates the need for an amended complaint." (Order 6/10/26, 2:24-26.)

Discussion

Plaintiff's

brief in support of the requested damages asserts that "Plaintiff is entitled to \$32,337.00 in total unpaid rent as damages; including \$21,600.00 in past due rent (from February 1, 2022, through March 31, 2023) and holdover damages in the amount of \$60.00 per day from the expiration of the 3-Day Notice through the date Defendants ultimately vacated the Premises on September 27, 2023." (Mot., 2:9-12.) Plaintiff's complaint alleges that "[b]eginning in February 2022 Defendants failed to pay the monthly rent for the property," except for "one payment of \$3,600." (Compl., ¶¶ 16-17.) Plaintiff alleges that "[t]hrough March 2023 Defendants owe \$21,600 in unpaid rent to Plaintiff." (Compl., ¶ 18.) Plaintiff also alleges that she "has additionally been damaged in the amount of the daily fair rental rate of \$60.00 from June 15, 2023 through the date that Defendant vacates the property, which may be recovered in the unlawful detainer action but is currently uncertain." (Compl., ¶ 30.) In Plaintiff's prayer for relief, she requests "damages in an amount to be determined at trial not less than \$21,600.00" and "the daily fair rental rate of \$60.00 from June

15, 2023 through the date that Defendant vacates the property.” (Compl., Prayer, ¶¶ 1-2.)

Plaintiff’s

motion asserts that “Plaintiff commenced this instant action on September 6, 2023, prior to the Defendants surrendering possession of the Premises to Plaintiff.” (Mot., 1:26-27.) Plaintiff asserts that she “is entitled to recover the additional holdover damages that accrued after the Complaint was filed because those damages were expressly identified in the Complaint itself and are capable of simple mathematical calculation. Plaintiff’s Complaint did not merely seek unspecified damages ‘according to proof.’ Rather, Plaintiff alleged a fixed amount of accrued damages in the sum of \$21,600.00 and further alleged that Plaintiff was entitled to additional damages at the rate of \$60.00 per day for each day that Defendants continued to withhold possession of the Premises until such time that Defendants vacated. Thus, Defendants were placed on formal notice, from the face of Plaintiff’s Complaint, that their monetary exposure would increase by \$60.00 for each additional day they remained in possession of the Premises.” (Mot., 2:16-24.)

Plaintiff

cites Code of Civil Procedure section 580, subdivision

(a), which provides that “[t]he relief granted to the plaintiff, if there

is no answer, cannot exceed that demanded in the complaint.” “Section 580...aim[s] to ensure that a defendant who declines to contest an action does not thereby subject himself to open-ended liability. Reasoning that a default judgment that exceeds the demand would

effectively deny a fair hearing to the defaulting party, the Courts of Appeal have consistently read the code to mean that a default judgment greater than

the amount specifically demanded is void as beyond the court’s jurisdiction.” ((Greenup v. Rodman (1986) 42 Cal.3d 822, 826.) “[T]he primary purpose of the

section is to guarantee defaulting parties adequate notice of the maximum

judgment that may be assessed against them... ‘The notice requirement of section 580 was designed to insure fundamental fairness.’” (Ibid.) Moreover, when the

amount of damages requested is not listed in the prayer, “the allegations of a complaint may cure a defective prayer for damages.” (Greenup v. Rodman (1986) 42 Cal.3d 822, 829.)

Plaintiff asserts that based on the

foregoing, “Plaintiff’s Complaint complies with section

580 and due process requirements. Plaintiff’s Complaint both identified the fixed accrued amount, \$21,600.00, and it also identified the precise continuing

rate, \$60.00 per day, by which damages would accrue so long as Defendants continued to remain in possession of the Premises. The requested judgment therefore does not exceed that amount requested in the Complaint. This merely requires the application of the expressly pleaded daily rate of \$60.00 to the number of days that Defendants actually remained in possession. Because the additional amount is calculated by multiplying the pleaded \$60.00 daily rate by the number of days that Defendants continued in unlawful possession of the Premises, Defendants not only had formal notice of the maximum consequences of remaining in possession, but also unilaterally controlled the very duration of possession that determined the damages calculation.” (Mot., 3:7-16.)

Plaintiff

further contends that “[t]he additional damages are not prohibitively speculative or impermissibly open-ended. At the time the Complaint was filed, the final amount of holdover damages were unknown to Plaintiff as Defendants had not surrendered possession and precisely the reason why the Complaint pleaded a daily rate. Once Defendants ultimately vacated (on a date of Defendants’ sole election) the damages became fixed by a calendar calculation.” (Mot., 3:18-22.)

The

declaration of Suzan Lee Paek explains that “[t]o date, Defendants have accrued and owe Plaintiff \$32,337.00 in unpaid rent calculated as follows: \$21,600.00 from February 1, 2022, through March 31, 2023; \$4,440.00 for April 1, 2023, through June 14, 2023; \$6,300.00 for the 105 days of holdover, at \$60.00 per day, from June 15, 2023, through and including September 27, 2023; less \$3.00 for a security deposit interest credit.” (Paek Decl., ¶ 22.) The Court recognizes that the \$21,600 is the explicit amount demanded in the complaint for unpaid rent, which Plaintiff pleads this is “[t]hrough March 2023.” (Compl., ¶ 18 [emphasis added].) Whereas the \$6,300.00 sought is for “the amount of the daily fair rental rate of \$60.00 from June 15, 2023 through the date that Defendant vacates the property.” (Compl., ¶ 30 [emphasis added].) The Court does not dispute that Plaintiff is entitled to damages for \$21,600.00 from February 1, 2022 through March 31, 2023, and damages for \$6,300.00 for the 105 days of holdover. However, the problem is that Plaintiff requests unpaid rent for April 1, 2023 through June 14, 2023 in the amount of \$4,400.

Regarding

this time period, Plaintiff’s complaint states that she “served a 3-day notice to pay or quit on Defendants in June 2023 covering the rents demanded from

April 2023 through June 2023, declaring forfeiture of the rental agreement. The amounts demanded in that notice are later in time than the rental amounts demanded in this action." (Compl., ¶ 21.) However, at no point in the complaint does Plaintiff state that she requests the rental amounts covering April 2023 to June 2023. Nor does Plaintiff explain why these dates were not included in the complaint, whether as part of the holdover damages or as monthly rent.

Although

Plaintiff may find it axiomatic that Defendants owe rent from April 2023 to June 2023, the Court's powers are limited to granting the relief requested in the complaint. ((See *Dhawan v. Biring* (2015) 241 Cal.App.4th 963, 968 [Code of Civil Procedure section 580, subdivision (a) "limits a trial court's jurisdiction to grant relief on a default judgment to the amount stated in the complaint."]); *Finney v. Gomez* (2003) 111 Cal.App.4th 527, 534 "[I]n all default judgments the demand sets a ceiling on recovery."].) Plaintiff's complaint does not request damages covering April 2023 to June 2023 in the prayer or in the body of the complaint. Notably, Plaintiff even disclaimed this amount, stating that "[t]he amounts demanded in that notice are later in time than the rental amounts demanded in this action." (Compl., ¶ 21.) Plaintiff's motion in support of the requested judgment fails to adequately substantiate the request.

Conclusion

Based

on the foregoing, the Court denies the request for default judgment without prejudice. To recover the damages sought, Plaintiff must file an amended complaint. Otherwise, Plaintiff must amend the requested amount of damages.

DATED: July
29, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court